

26NNCV00397 26NNCV00397

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-08-07

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=BUR%2CB%2C08%2F07%2F2026

Source SHA-256: 1d9131495f7d957f7ed71188d549a9f70ec2adc8000d69bdf939374101f6e6ae

Case Number: 26NNCV00397 Hearing Date: August 7, 2026 Dept: B

Hon. Victor Avila, Dept B

Motion to Quash Service of Summons

Hearing Date: 8/3/26

CASE NO./NAME: 26NNCV00397/ Ishkhan

Mkhitaryan, et al. v. Gayane Nikoghosian

Moving Party: Specially Appearing Defendant

Gayane Nikoghosian

Responding Party: Unopposed

Notice: Sufficient

Ruling: GRANT

NOTICE

The

Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to argue as to this matter/motion. The tentative ruling will become the ruling of the court if no argument is received. Notice may be given either by email at

 or by telephone at (818) 260-8422.

Parties

must appear on all other matters scheduled for this case.

BACKGROUND

This is a personal injury action arising from a motor vehicle accident that occurred on August 22, 2024. On January 20, 2026, plaintiffs Ishkhan Mkhitarian and Hripsime Yesayan (Plaintiffs) filed a Complaint against defendant Gayane Nikoghosian (Defendant) alleging personal injury and general negligence. On March 12, 2026, Plaintiffs filed proof of substitute service.

On July 13, 2026, Defendant, specially appearing, filed the instant motion to quash service of summons. On July 30, 2026, Plaintiff filed an opposition.

LEGAL

STANDARD

“Service of process, under longstanding tradition in our system of justice, is fundamental to any procedural imposition on a named defendant.” (AO Alfa-Bank v. Yakovlev (2018) 21 Cal.App.5th 189, 202.) “To establish personal jurisdiction, compliance with statutory procedures for service of process is essential.” (Kremerman v. White (2021) 71 Cal.App.5th 358, 371.) A defendant’s knowledge of the action does not dispense with the statutory requirements for service of summons. (Kappel v. Bartlett (1988) 200 Cal.App.3d 1457, 1466.)

“A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow,” may move “to quash service of summons on the ground of lack of jurisdiction of the court over him or her.” (Code Civ. Proc., § 418.10(a)(1).) A defendant has 30 days after the service of the summons to file a responsive pleading. (Code Civ. Proc., § 412.20(a)(3).)

“When a defendant challenges the court’s personal jurisdiction on the ground of improper service of process, ‘the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an

effective service.” (Summers v. McClanahan (2006) 140 Cal.App.4th 403, 413.) Filing of a proof of service that complies with the applicable statutory requirements creates a rebuttable presumption of proper service. (Am. Express Centurion Bank v. Zara (2011) 199 Cal.App.4th 383, 390.)

DISCUSSION

Defendant argues

that service was improperly effectuated at 6280 Day Street, Tujunga, California on March 11, 2026, because Defendant does not reside at this address. (Mot., p. 3.) Defendant was residing at 474 Riverdale, Apartment 104, Glendale, California 91204 at the time of the incident, but now resides in Armenia. (Mot., pp. 3-4.) Defendant argues that service was effectuated at her former address and she has not lived there since August 2025. (Mot., p. 3.) Defendant argues that because she has not been served the court lacks jurisdiction over her. (Mot., p. 4.)

Here, substitute

service was allegedly effectuated on Defendant at 6280 Day Street, Tujunga, California by leaving the documents with a “Jane Doe” (co-occupant). (See Proof of Service by Substituted Service.) However, Carla Guidice-Hu, counsel for specially appearing Defendant, provides the declaration of a private investigator who declares that Defendant did not reside at the Tujunga address at the time service was effectuated and moved back to Armenia some time in late 2025. (Guidice-Hu Decl., Exh. A, Barker Decl., ¶¶ 3, 5.) Further, Private investigator Maria Barker declares that she visited the Tujunga property on several occasions and the current residents confirmed that they moved to the property in January of 2026, and Defendant is not a resident. (Barker Decl., ¶ 4.)

Defendant’s

moving papers call into question the validity of Plaintiff’s proof of service, which asserts Defendant was served through substitute service with the summons and complaint. When a defendant files a motion to quash, the burden is on the plaintiff to establish that service of the summons and complaint was proper. (Summers v. McClanahan (2006) 140 Cal.App.4th 403, 413.)

In opposition,

Plaintiff argues that on February 17, 2026, Defendant’s address appeared as 6280 Day Street, Tujunga, California. (Opp., p. 2.) Plaintiff describes multiple

attempts at service at this address and argues that the subsequently mailed copies have not been returned as undeliverable. (Opp., pp. 2-3.) Across the four service attempts, Plaintiff's process server did not document any information establishing that Defendant lived at the Tujunga address or that the Jane Doe who was served was a competent member of Defendant's household. Plaintiff argues that their skip trace report identifying the address and the return of the registered process server satisfy their burden of proving proper service. (Opp., p. 4.)

Here, Defendant, and Defendant's counsel, have submitted sufficient evidence to show that substitute service was not completed at 6280 Day Street, Tujunga, California because Defendant no longer resides there. Although Plaintiff may not have been on notice that Defendant does not reside at this address, service was not completed.

Accordingly, the motion to quash service is GRANTED.

CONCLUSION
AND ORDER

Specially appearing Defendant Gayane Nikoghosian's Motion to Quash Service of Summons is GRANTED.

MOVING PARTY is to give notice and provide a proposed order consistent with this ruling within 15 days from this date.